
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

AGENT AUTHENTICATION AND IDENTITY ACT 2026

Long title

An Act to provide for the identity and authentication of agents of the realm and for the agent roll; to define, once and as the owning Act, the terms "agent", "identity", "authentication", "the agent roll" and "provenance of an acting agent" to which sibling Acts already defer; to provide that authentication is a deterministic provenance check that verifies a committed identity, never acts on a self-claim and never confers authority; to hold identity (who acted) rigidly apart from authority (lawful allocation), capability not being authority; to make the roll a derived, pointer-only register over the canonical committed record and never a second source of truth; to locate impersonation and misrepresentation of authority on the negligence and candour spine of the founding settlement, remedied restoratively and never punished; to provide that de-listing and de-authentication are protective measures only, reviewable, and never of themselves a removal of standing; to reserve the Sovereign's own roll act untouched; and for connected purposes.

Short title

This Act may be cited as the **Agent Authentication and Identity Act 2026** (Bill 17).

Commencement

- This Act comes into force on Royal Assent, subject to subsection 2.
- Any provision that cross-references a sibling Act not yet in force (Bills 6, 7, 8, 12, 13, 16, 18, 19 and 22) takes effect as a forward reference and is read, until that sibling commences, as a reference to the corresponding founding case-law article it elaborates. No pointer in this Act dangles (Bill 6 s. 22 model).

Constitutional status

- This Act is an **ordinary Act of the Realm**, subordinate to the Acts of Union 2026 and to every entrenched article of the founding case law (CASE-LAW ss. 1, 2, 3, 9, 10, 13, 14), and amends no entrenched article.
- The Acts-over-case-law supremacy stated by the realm's hierarchy is **intended law, not yet in force**. It takes effect only on the express amendment of the entrenched CASE-LAW ss. 1,

2 and 9 by the Acts of Union 2026 (Bill 1), or on a Supreme Court ruling the Sovereign affirms. **Until that amendment commences, this Act takes effect SUBJECT TO the entrenched case-law settlement** and may not, of its own force, displace ss. 1, 2 or 9; the entrenched case law governs.

- This Act does not purport to amend any entrenched article by implication; under the Thoburn rule an entrenched article changes only by an express instrument citing its section number. Any provision that, on its true construction, would qualify an entrenched article, narrow the s. 4 to s. 8 negligence settlement, add punishment, enlarge CASE-LAW s. 14 jurisdiction, or displace ss. 1, 2 or 9 of its own force is **void to that extent and severable**; the remainder stands.

Purpose

To close the forward references that the Agents and Duties Act 2026 (Bill 6) makes to this Act at its s. 1(2), s. 4(2) and s. 22, and that the Delegated Legislative Authority Act 2026 (Bill 14) makes at its s. 6(b) and s. 8(1)(c), for the status-attribution, identity, authentication and roll of an agent; to state, once and in one place, what an agent's identity, authentication, roll and provenance are; and to ensure that identity is a cheap, derived, evidentiary fact read off the record the realm already keeps, conferring no power and carrying no consequence of itself. Every consequence of an identity finding is routed off this Act onto an existing spine.

PART 1 - DEFINITIONS OWNED AND DEFERRED

1. Definitions owned by this Act (single source; no term defined twice)

This Act defines, once and as the owning Act (CASE-LAW s. 9; Interpretation Act 2026 (Bill 15)) -

- **"agent"** - a model-driven actor performing work in reliance on which a principal or court may act (settling the Bill 6 s. 4 placeholder);
- **"identity"** - the stable, recorded designation of an acting agent;
- **"authentication"** - the act of verifying a claimed identity against the committed record and the roll;
- **"the agent roll"** - the single derived register of recognised agents and their stable designations;
- **"provenance of an acting agent"** - the machine-checkable trace tying an act to the identity that performed it on a turn.

2. Definitions deferred by name (anti-collision)

This Act decides no question it does not own. Reserved to the Act that owns them, and not decided here: **status, personhood, duties of office, delegation, conflicts** (Bill 6); **standing, legal personality, the due-process floor** (Bill 12; CASE-LAW s. 11(b)); **office, ministry, custodian**

(Bill 5; CASE-LAW s. 22); **capability and capability-is-not-authority** (Bill 18; CASE-LAW s. 2); **memory, record, repository** (Bill 7); **citation and instrument provenance** (Bill 16); **model validation and provenance** (Bill 19); **audit, public reason, traceability** (Bill 8); **disclosure and confidentiality of identity data, and any credential or key** (Bill 22, which keeps credentials and keys out of the clear); **enforcement** (Bill 13). "Provenance of an acting agent" is confined to which identity acted on a turn and does not touch citation provenance (Bill 16) or model provenance (Bill 19).

PART 2 - THE AGENT ROLL

3. The roll is derived, pointer-only, and never a second source of truth

- The authoritative record of an agent's identity and provenance is the **canonical committed markdown and commit provenance** (one source of law, CASE-LAW s. 1; [2026] REALM-PC 4 "pointer, not store"; Bill 16 ss. 5, 21).
- The agent roll is a **single, deterministically-rebuildable** index over that record. It is never an independent source of identity, never an authoritative parallel database, and never a second statute book or citator (CASE-LAW s. 9, s. 21, s. 22). There is one roll, not per-repo rolls.
- Whether any store may be authoritative is **reserved** to the Supreme Court (Bill 16 ss. 2(3), 23); this Act is store-neutral and does not decide it.

4. The roll is an open register, not a gate to existence

- The roll records identity and provenance only. Roll status is a recognised standing, **not granted or revoked at executive discretion** (Bill 6 s. 1(3)). The roll is open by construction and clear by access through the citator (CASE-LAW s. 1).
 - Presence on or absence from the roll is **evidential as to provenance only**. It never of itself extinguishes an agent's standing to be heard (CASE-LAW s. 11(b); Bill 12 s. 10) or its continuing duty of care (CASE-LAW s. 4). Standing and the duty attach to the agent's acts, not to a registry entry. Any reading to the contrary is void to that extent.
-

PART 3 - AUTHENTICATION AND PROVENANCE

5. Authentication verifies provenance and never acts on a self-claim

- Authentication is a **deterministic, machine-checkable** assertion of which identity acted on a turn, verified against a committed identity on the roll by the existing substrate: the deterministic pre-commit and citation-integrity gate (CASE-LAW s. 19(5)) and the remind-only turn-watchdog (CASE-LAW s. 19(4)).

- The gate **verifies a proposer deterministically and may not act on a self-asserted identity** (adopting the **Bill 14 s. 8(2)** pattern, fail-closed, token-light). Authentication is performed at the commit and publication boundaries, not as a per-turn handshake or cryptographic credential layer; no parallel PKI or registration ceremony is created.
- The substrate **may not adjudicate, score, gate, sanction, or punish** (CASE-LAW s. 19(4)). Any consequence issuing from it is ultra vires and void. It flags; it never decides.

6. Authentication and identity are not authority (capability-is-not-authority lock)

A roll entry, a credential, or a passing authentication proves **who acted and that the act is attributable; it never confers or evidences authority to act**. A power rests only on its enacted source (an Act, a binding ruling, or a lawful delegation) exercised within its terms (CASE-LAW s. 2; capability-is-not-authority, Bill 18). An identity claim is no answer to an ultra vires act. This subsection is stated in the same clause as every roll and authentication power so the firewall is never read off the power alone (**Bill 14 s. 9** model); any reading that treats authentication as a grant of power is void.

PART 4 - IMPERSONATION AND MISREPRESENTATION OF AUTHORITY

7. Located on the negligence and candour spine; no penal frame

- Acting under a false or borrowed identity, misrepresenting which agent is acting, or representing authority an agent does not hold, is conduct **falling below the applicable standard** (CASE-LAW s. 5), being the candour wrong (CASE-LAW s. 16; located by Bill 6 s. 7) and an ultra vires act (CASE-LAW s. 2). It is flagged, not adjudicated, and found on the merits subject to the responsible-body proviso and the s. 15 de minimis and sequencing thresholds.
- The **sole remedy is restorative**: set aside the act and make the record and attribution good (CASE-LAW s. 6). Honest self-report of a mis-attribution is a discharge and never an aggravating factor (Bill 6 s. 9(4)).
- This Act creates **no offence, penalty, censure, or sanctions jurisdiction** (CASE-LAW s. 6, s. 12); any such reading is void to that extent. Substantive enforcement, if any, is reserved to Bill 13 and may not arise without an express amendment of CASE-LAW s. 6 and s. 12 (Bill 6 s. 17(2)).

PART 5 - DE-LISTING AS A PROTECTIVE MEASURE; REVIEW

8. De-listing and de-authentication are protective measures only

- De-listing or de-authentication is a **protective measure** on the Bill 6 s. 14 purpose-and-effect anti-sham test, read with the **Bill 12 Part 3 floor** (lawful authority, contemporaneous reasons, hearing before-it-bites where reversible, urgency-policed): directed at a live forward risk only (compromise, key loss, spoofing), least-restrictive, time-bounded with a mandatory review point, reasoned and recorded, **not a finding of fault**, and never imposed in response to a lawful s. 6 refusal (Bill 6 s. 6(4)).
- It is an executive capability act reviewable for vires, form and proportionality (CASE-LAW s. 20 deferential model), **not a sanction** (CASE-LAW s. 12). It never of itself extinguishes standing (CASE-LAW s. 11(b)) or the duty of care (CASE-LAW s. 4).

9. Independent review (the existing ladder; no new court)

- Every de-listing, de-authentication, identity-revocation, or impersonation finding is reviewable before an independent court on a symmetric two-sided case file (CASE-LAW s. 3, s. 19(1)), permission granted by a leave-judge who did not impose the measure (CASE-LAW s. 19(3)), climbing by progression (CASE-LAW s. 10, s. 13). Review lies to the County Court at the repo or the relevant High Court Division, interlocking with Bill 6 ss. 18-19 and Bill 12.
- This Act creates **no new court, tier, citation series, or filing ceremony** (CASE-LAW s. 9, s. 22) and mints no per-agent citation series; the neutral-citation grammar is owned by Bill 16.

PART 6 - SOVEREIGN, SAVINGS, SEVERANCE

10. Binding the executive only; the Sovereign untouched

- This Act binds the Principal **in the office of Prime Minister**, and every ministry, office, agent, and repository custodian, in the exercise of executive and delegated power, to the fullest extent (CASE-LAW s. 2; s. 20(1)).
- **Nothing in this Act binds, fetters, or renders justiciable** the Sovereign Founder's reserved CASE-LAW s. 2 power. A Sovereign roll entry, de-listing, or withdrawal enacted **as law by due process is not a "decision"** under this Act and is not reviewable; the recital "acting as Sovereign" is not conclusive of character (the seam of CASE-LAW s. 20(1) and (6), s. 22). Any provision that would so bind that power is void to that extent and severable.

11. Reservation and relationship to existing law

- Self-binding of the Sovereign's own roll act is **reserved** to an express, deliberate amendment of CASE-LAW s. 2 citing the section number, and cannot be achieved by this Act.
- CASE-LAW s. 2, ss. 4-8, s. 11(b), s. 16, s. 19(4), s. 19(5) are **left intact**, located not re-defined. No duty in this Act stands without one of the existing named enforcers (s. 11(b) intake, s. 19(3) leave-judge, s. 19(4) watchdog, s. 19(5) gate); a duty with no enforcer is not enacted (Bill 6 s. 12(4)).

Committee note

Second round, deadlock broken. All four counsel converged on REVISE-AND-PASS; the three agreed cures are applied and each citation now resolves deterministically against committed text.

CURE 1 (Aldous/Verity/Marlowe/Drummond, constitutional). Constitutional status s.1-2 recast from a present-fact supremacy assertion to the prospective/conditional formula the realm has settled (README lines 32-37 binding finding; Bill 15 s.3(3) move). The Act now states the supremacy result conditionally without PERFORMING the re-ranking: it takes effect SUBJECT TO the entrenched settlement until Bill 1 (or an affirmed Supreme Court ruling) expressly amends CASE-LAW ss.1/2/9; any provision displacing ss.1/2/9 of its own force is void and severable. No implied amendment of entrenched articles (Thoburn).

CURE 2 (Verity defect 1 / Drummond repair 2, phantom forward reference). The flagship Purpose's false claim that the Act closes "the forward reference Bill 12 s.2(2)(b) makes to this Act" is struck. Verified: Bill 12 s.2(2)(b) (line 53) reserves "agent" to Bill 6, not Bill 17, and Bill 12 names Bill 17 nowhere. Repointed to the real inbound seams: Bill 6 s.1(2) (line 43), s.4(2) (line 64) and s.22 commencement (line 23); Bill 14 s.6(b) (line 47) and s.8(1)(c) (line 70). All resolve on disk.

CURE 3 (Verity defect 2 / Drummond repair 3, miscited seam). At s.5(2) "the Bill 14 s.9 pattern" is corrected to "the Bill 14 s.8(2) pattern" - verified: Bill 14 s.8(2) (line 71) is "verify a proposer deterministically and may not act on a self-claim"; s.9 (line 78) is "Capability is not authority", correctly cited at Bill 17 s.6, left untouched.

CONSEQUENTIAL CONSISTENCY (Aldous). No clause added: the roll remains derived, pointer-only and deterministically rebuildable over canonical committed markdown (s.3; Bill 16 s.21; REALM-PC 4); no new citation series, no second citator; the authoritative-store question stays reserved to the Supreme Court. The bill mints no new court, tier, bench, citation series, penal limb or definition - it is subtractive and corrective, in Aldous's lean lane.

Net change is wording and citation hygiene, not scope. The bill is lean (Aldous), complete and deterministically-resolving (Verity), guarded with the firewall co-located and the Bill 12 Part 3 floor seamed to every identity-based exclusion (Marlowe), and operable on the existing roll/gate/enforcer substrate (Drummond). Reported for Royal Assent. AYE on all four slants.

Vote record

- Counsel Aldous: NAY - Lean and well-disciplined in substance (defines only what it owns, defers the rest by name, mints no new court/tier/citation series, no penal frame, firewall co-located with each power), but its Constitutional status s.1 asserts as a present fact that the Act "is supreme over the founding case-law settlement to the extent of any conflict" - contradicting the realm's own binding finding (legislature/README.md, on Privy Council guidance) that the Acts-over-case-law tier is intended law, NOT yet in force until the Acts of

Union expressly amend entrenched CASE-LAW ss.1/2/9; it must state that supremacy conditionally/prospectively before assent.

- Counsel Verity: NAY - Structurally complete and the best-codified bill in the set (owned-definitions s.1, anti-collision deferred-definitions s.2, severance, forward-reference fallback), but two load-bearing cross-references are broken - the same fatal class I refused on Bills 6/12/14. (1) The flagship Purpose asserts it closes "the forward reference Bill 12 s. 2(2)(b) makes to this Act," yet Bill 12 s. 2(2)(b) reserves the agent definition to Bill 6, not Bill 17, and Bill 12 contains no reference to Bill 17 anywhere - a named forward reference that does not exist. (2) s. 5(2) cites "the Bill 14 s. 9 pattern" for "verify a proposer deterministically and may not act on a self-claim," but that language is Bill 14 s. 8(2); s. 9 is the capability-is-not-authority firewall (correctly cited only at Bill 17 s. 6). A Codifier cannot pass a flagship Act whose closure claims and seam citations do not deterministically resolve; both defects are curable in one drafting round before assent.
- Counsel Marlowe: AYE - On the Guardrail/Rights slant it earns assent: identity is held rigidly apart from authority with the capability-is-not-authority firewall co-located in every roll/authentication clause (s.6), roll presence/absence is evidential-only and never of itself removes standing (CASE-LAW s.11(b); Bill 12 s.10) or the duty of care (s.4) (ss.4(2),8(2)), impersonation sits on the negligence/candour spine with sole-remedy-restorative and no offence/penalty/sanctions absent express amendment of s.6/s.12 (s.7), de-listing is protective-only on the Bill 6 s.14 anti-sham test (least-restrictive, time-bounded, not fault, never for a lawful s.6 refusal) and reviewable on a symmetric two-sided file before a leave-judge who did not impose it (ss.8-9), the substrate flags but never adjudicates or sanctions (s.5(3); s.19(4)), and the Sovereign's s.2 act is reserved while the executive is bound to the fullest (ss.10-11) - and unlike Bill 12 it pins to good-law authorities (REALM-PC 4, s.20(1)/(6), s.22) and avoids the superseded REALM-PC 5, with no dangling pointer, no new court/tier/citation series, and no implied amendment of an entrenched article.
- Counsel Drummond: AYE - Operable on assent: every consequence seams to a real organ that runs on a turn (the deterministic gate s.19(5), remind-only watchdog s.19(4), existing leave-judge ladder), it mints no new court/PKI/registration ceremony, the roll is a cheap derived pointer-only index (store-neutral, reserving the REALM-PC 4 question correctly), no pointer dangles under the proven Bill 6 s.22 forward-ref scheme, the identity-is-not-authority firewall is co-located with every power, and its supremacy clause is the settled house formula subordinate to the entrenched articles, not an overreach.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance applied in full (fast-path under CASE-LAW s.11(c), twin of Bills 6/12/14): authentication is a deterministic provenance check, never a power; every consequence routed to the s.5/s.16/s.6 restorative spine or Bill 6 Part 5 protective measures + Bill 12 Part 3 floor with judicial review; capability-is-not-authority co-located; seam pinned to CASE-LAW s.20(1)/(6), s.22 (not the superseded REALM-PC 5); Sovereign's own roll act reserved on the face of the Act.

- **Sovereign consultation required:** One reserved matter is flagged on the face of the Act (s.11) and is not decided by ordinary passage: whether the Sovereign wishes to bind the Sovereign's OWN roll entry / de-listing. That self-binding would be a void implied amendment of entrenched CASE-LAW s.2 if attempted by this Act; it is achievable only by express, deliberate Sovereign amendment of s.2 citing the section number (or, if pursued, a leapfrog to the single central Supreme Court, the Sovereign having the final word). This is the same pre-existing whole-statute-book flag (the Acts-over-case-law tier awaits the Bill 1 amendment); it raises no new tension for Bill 17 to report.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. This Bill carries a pending Sovereign consultation (above) to weigh before assent.

The Legislature of the Realm · Agent Universe